

EPA Compliance Workshops Don't Reduce Violations

Lessons from “The effect of compliance assistance on pollution discharges and violations of environmental regulations” by Paul J. Ferraro & Jay P. Shimshack in *Journal of Policy Analysis and Management*, 2026.

Offering polluters free help to follow the rules doesn't make them more likely to follow them. New research studying hundreds of facilities that were offered free compliance workshops found the workshops didn't reduce violations.

BACKGROUND

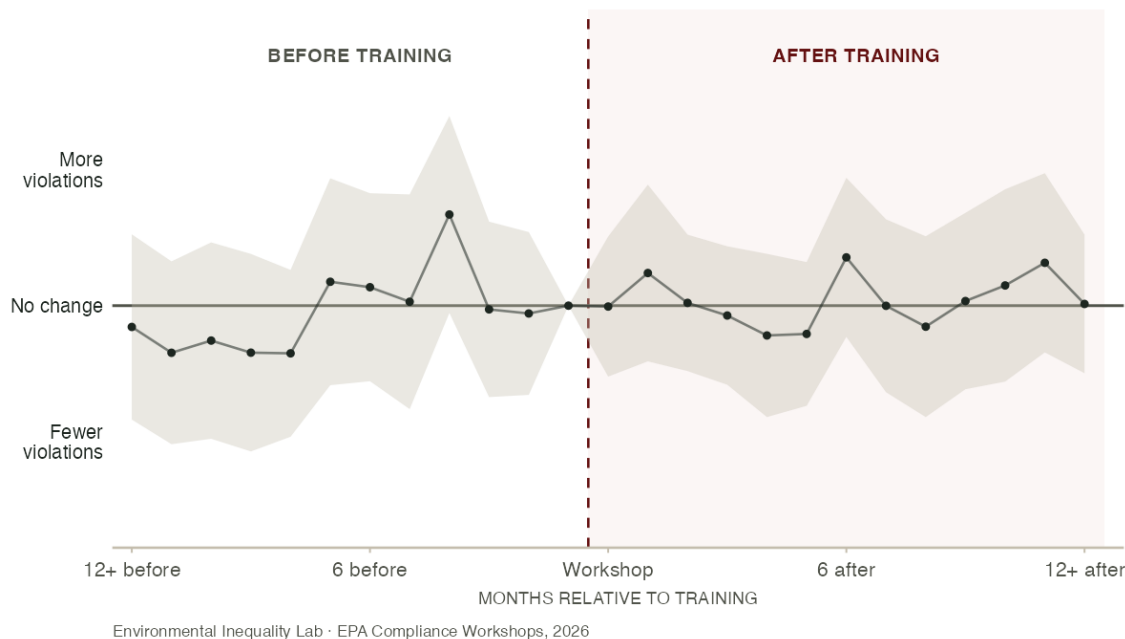
Environmental enforcement in the U.S. has long centered on penalties: inspect facilities, catch violations, and levy fines. **Compliance assistance** takes a different approach: **regulators help facilities follow the rules in the first place, through free workshops, guidance, and technical support.** The basis of the program comes from the belief that many violations stem from confusion or limited expertise rather than deliberate corner-cutting. While compliance assistance is becoming increasingly popular at the Environmental Protection Agency (EPA), **there's little evidence it actually works.**

In a new study, researchers set out to better understand how effective compliance assistance actually is, using data on hundreds of wastewater treatment facilities regulated by the Ohio EPA. Facilities that had recently been cited for violations were invited to participate in compliance workshops, which were rolled out over several months. Those that volunteered to attend received free training on how to comply with the Clean Water Act. The researchers then compared the facilities that attended the workshops against those that had not yet been trained, tracking whether violations fell after the workshops.

WHAT THE STUDY FOUND

THE WORKSHOPS' EFFECT ON VIOLATIONS, MONTH BY MONTH

Source: Ferraro & Shimshack (2026).



Note: Each point compares violations at trained facilities against facilities not yet trained, month by month around training (month 0). After training, an effect from the workshops would show up as the line moving away from zero; instead it stays flat, and the shaded band of statistical uncertainty always includes “no change.” The workshops had no detectable effect.

Evaluating whether a policy works is hard, because we never get to see what facilities would have done without it.

You might start with the simplest comparison: did violations fall at trained facilities after the workshops? The trouble is that violations were already falling across the board in these years, so a before-and-after look would credit the workshops with a decline that was happening anyway. The next instinct is to compare facilities that attended against those that didn't. Yet the workshops were voluntary — the facilities that signed up may have been more motivated to clean up to begin with, so any gap between them could reflect who volunteered rather than what the training did.

The researchers got around this by comparing facilities trained early against ones that had *also* signed up but had not yet been trained. Those facilities were just as motivated, having volunteered too, and they were tracked over the same months, so the across-the-board decline showed up in both groups equally. The staggered rollout — workshops spread over several months — is what made those not-yet-trained facilities available as a fair comparison. That comparison holds only if the not-yet-trained facilities really would have followed the same path as the trained ones, which is something the researchers have to assume. With that fair comparison in place, the researchers found that **trained facilities were no less likely to violate than facilities that had not yet been trained.**

TAKEAWAYS**THE LIMITS OF ASSISTANCE**

If free guidance doesn't change behavior, **the barriers to compliance likely lie in the costs, capacity, and incentives that shape how facilities operate day to day, not a lack of know-how.** The study suggests that the facilities are less like confused actors waiting for help than ones weighing whether compliance is worth it.

ENFORCEMENT IS THE TESTED ALTERNATIVE

The natural alternative to compliance assistance is traditional oversight, which past evidence suggests does curb violations. Enforcement budgets are already shrinking; if assistance draws scarce money and staff away from them, compliance could slip rather than improve.

TEST BEFORE YOU SCALE

Regulators judged the program a success and moved to expand it to other states before solid evidence showed it worked. A better path, the authors argue, is to test first: offer the help to some facilities but not others, then compare the two groups — so agencies can see whether it actually works before spreading it everywhere. **A promising program still has to prove itself before it scales.**

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